

Court No. - 32

Case :- WRIT - C No. - 36983 of 2014

Petitioner :- Smt. Chandra Kala Singh

Respondent :- U.P. Power Corporation Ltd. Thru' C.M.D. & Another

Counsel for Petitioner :- Bal Mukund Singh

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Sunil Ambwani,J.

Hon'ble Dinesh Maheshwari,J.

1. We have heard Sri Bal Mukund Singh for the petitioner. Sri Mahboob Ahmad appears for U.P. Power Corporation Ltd.

2. The petitioner has applied for electricity connection in House No. 295, Madhawapur, Bairahana, District Allahabad. The Sub Divisional Officer (R/B) has rejected the petitioner's application on the ground that there is a civil case pending in respect of the property in which electricity connection has to be installed, and thus unless the Court directs, the electricity connection cannot be given.

3. It is submitted by the petitioner that the supply of electricity is essential to life, and thus the denial of electricity connection clearly amounts to denying right to life. A dispute is pending between the husband of the petitioner and the landlord in Misc. Case No. 537 of 1997, on the ground that the landlord has refused to accept the rent, on which the petitioner is regularly depositing the rent in court.

4. Sri Mahboob Ali states that new electricity connection is not ordinarily provided during the pendency of a case in Court.

5. Clause 4.4. of the Electricity Supply Code 2005, provides a detailed procedure for giving provisional electricity connection to the intending consumer, who is not the owner of the premises, on execution of indemnity bond as per Annexure 4.2. The bond provides that if the person applying for connection is not able to obtain the consent of the landlord, he/she can produce the proof of occupancy i.e. valid power of attorney/latest rent paid receipt/registered lease deed.

6. In the present case, electricity connection has been denied only on the ground that a civil case is pending between the tenant-petitioner and the landlord.

7. Having regard to the facts and circumstances, we direct that a fresh inspection may be made, and if the petitioner is found to be the occupier of the premises, the electricity connection will be sanctioned to her provisionally on executing indemnity bond as per clause 4.4. of the U.P. Electricity Supply Code 2005. The necessary orders in this regard will be passed by the Sub Divisional Officer, Electricity Distribution Division, Purvanchal Vidyut Vitaran Nigam Ltd, Allahabad within two weeks from the date a certified copy of this order is presented before him.

8. The writ petition is **disposed of** with these directions.

Order Date :- 21.7.2014

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